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IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement*

CA(CAA)/15(CHE)2022

LTIDPL INDVIT SERVICES LIMITED
CIN NO: U45203TN1999PLC042518
Having its Registered Office at
5th Floor, SKCL- Tech Square, Lazer St, South Phase,
SIDCO Industrial Estate, Guindy,
Chennai – 600 032

... Applicant / Demerged Company

Along with

CA(CAA)/17(CHE)2022

WATRAK INFRASTRUCTURE PRIVATE LIMITED
CIN NO: U45309TN2021PTC148014
Having its Registered Office at
Mount Poonamallee Road, P.O.No.979,
Manapakkam, Chennai – 600 089

... Applicant/ Resulting Company

And

Their Respective Shareholders

*Order Pronounced on **1st June 2022***

CORAM

R. SUCHARITHA, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): N.V.Prakash, Advocate

COMMON ORDER

Per: **R. SUCHARITHA, MEMBER (JUDICIAL)**

Under consideration are two applications Viz., CA(CAA)/15(CHE)/2022 & CA(CAA)/17(CHE)/2022 filed by the Applicant Companies, namely **LTIDPL INDVIT SERVICES LIMITED** (for brevity "Demerged Company") and **WATRAK INFRASTRUCTURE PRIVATE LIMITED** (for brevity "Resulting Company")under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as "Annexure – A4" to the CA/CAA/15 & 17(CHE) 2022.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	**SECURED CREDITORS**	**UNSECURED CREDITORS**
DEMERGED COMPANY	To dispense with	NIL	To dispense with
RESULTING COMPANY	To dispense with	NIL	To dispense with

3. From the certificate of incorporation filed, it is evident that the Demerged Company is a Public limited company incorporated under the provisions of Companies Act, 1956 under the name and style of "L&T Western India Tollbridge Limited" and subsequently after obtaining due approvals the Name of the Company was changed to "LTIDPL INDVIT SERVICES LIMITED" on 15.09.2017 and name change letter was issued by the Registrar of Companies, Chennai. The Certificate of incorporation reflecting new name is enclosed at page no 35 of the Typeset of the Application. The Authorized Share Capital of the Demerged Company as on 31.03.2021 and 31.12.2021 are as under:

Particulars	31.03.2021	31.12.2021
Authorized Share Capital		
2,10,00,000 Equity Shares of Rs. 10 each	21,00,00,000	21,00,00,000
Issued, Subscribed and Paid up capital		
1,39,50,007 Equity Shares of Rs.10/- each	13,95,00,070	13,95,00,070

4. From the certificate of incorporation filed, it is evident that the Resulting Company is a Private limited company incorporated under the provisions of Companies Act, 2013 on 18.11.2021.The Authorized, issued, Subscribed and paid up share capital of the Applicant Company as on 18.11.2021(Date of Incorporation) and 31.12.2021 are as under:

Particulars	18.11.2021 (Date of Incorporation)	31.12.2021
Authorized Share Capital		
10,000 Equity Shares of Rs. 10 each	1,00,000	1,00,000
Issued, Subscribed and Paid up capital		
10,000 Equity Shares of Rs.10/- each	1,00,000	1,00,000

5. Affidavit in support of the above application was sworn for and behalf of the Applicant Companies has been filed by Mr. Paruchuri Sri Hari in the capacity of Authorised Signatory for the Demerged Company and by one Mr. Pradeepta Kumar Puhanin the capacity of Authorised Signatory for the Resulting Company along with the application and it is also represented that the Registered office of the Demerged Company is situated at 5th Floor, SKCL-Tech Square, Lazer street, South Phase, SIDCO Industrial Estate, Guindy, Chennai- 600 032 and the Registered office of the Resulting Company is situated at Mount Poonamallee Road, P.O.No.979, Manapakkam, Chennai- 600 089 within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

6. **LTIDPL INDVIT SERVICES LIMITED**
DEMERGEDCOMPANY – CA(CAA)/15(CHE)/2022

(i) There are 7 (Seven) Equity Shareholders and list of shareholders to this effect is placed at page Nos 233 of the typed set filed with the application and consent affidavits given by all of them is placed at page no.234 to 257 of the typed set filed with the application and sought for dispensation with holding of meeting.

(ii) There are NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 223 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There are 2 (Two) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 221 of the typed set filed with the application and consent affidavits given by both of them is placed at page nos.227 to 231 of the typed set filed with the application and sought for dispensation with holding of meeting.

7. **WATRAK INFRASTRUCTURE PRIVATE LIMITED**
RESULTING COMPANY CA(CAA)/17(CHE)/2022

(i) There are 2 (Two) Equity Shareholders and list of shareholders to this effect is placed at page Nos 129 of the typed set filed with the application and consent affidavits given by both the Shareholders is placed at page nos.129A to 134 of the typed set filed with the

application and sought for dispensation with holding of meeting.

(ii) There are NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 120 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There are 1 (One) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 119 of the typed set filed with the application and consent affidavit given by the sole Unsecured Creditor is placed at page nos.122 to 124 of the typed set filed with the application and sought for dispensation with holding of meeting.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2021 and Provisional Financial Statements for the period ended on 31.12.2021.

10. The Board of Directors of the Applicant Companies vide meeting held on 31st January 2022 had unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

11. The Appointed date as specified in the Scheme is 01.01.2022.

12. The Statutory Auditors of the Demerged and Resulting Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.The said Certificates of the Statutory Auditors in this regard is placed at "Annexure A8" in their respective accompanying typed set of Documents.

13. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. IN RELATION TO THE DEMERGED COMPANY : CA(CAA)/15(CHE)/2022

(i) **With respect to Equity shareholders:**

Since it is represented by the Demerged Company that there are 7 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all the shareholders and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Demerged Company that there are NIL Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Demerged Company that there are 2 Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained from both the unsecured Creditors Constituting 100% of the total value of credit are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

B. IN RELATION TO THE RESULTING COMPANY : CA(CAA)/17(CHE)/2022

(i) **With respect to Equity shareholders:**

Since it is represented by the Resulting Company that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from both and are

placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented by the Resulting Company that there are NIL Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Resulting Company that there is One Unsecured Creditor in the Company whose consents by way of Affidavits have been obtained from sole unsecured Creditor are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

14. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed**

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

R. SUCHARITHA
MEMBER (JUDICIAL)

SriramAnanth.V